BY STUDENT ON RS. 500 STAMP PAPER AND NOTARIZED

(DRAFT 1)

AGREEMENT

AGREEMENT is made at ... this ... day of ... between the Mahatma Gandhi Missions Institute of Health Sciences having its office at Sector 1, Kamothe, Navi Mumbai (hereinafter referred to as the Party of the First Part) and Miss/Mr. (Dr.....- residing at ..... (hereinafter referred to as the Party of the Second Part).

WHEREAS

1. The Party of the first part is the Mahatma Gandhi Missions Institute of Health Sciences, a deemed to be University registered under the University Grants Commission Act and established by the Mahatma Gandhi Mission Trust (MGM Trust), registered Public Charitable Trust. The Mahatma Gandhi Missions Institute of Health Sciences has constituents Medical Colleges in Navi Mumbai and in Aurangabad.

2. The Party of the second part is a student who has taken admission and enrolled/ is desirous of enrolling in the course of (Degree) MD/MS offered by the Colleges/Institutes, which are run and administered by the Party of the First part.

3. The party of second part on completion of the course of (Degree) MD/MS will be qualified person to be appointed to the post of Senior Resident/Tutor with the party of first part. The Party of the second part has agreed and undertaken to join the employment of the party of first part as a Senior Resident/Tutor and work with the party of the first part for a period of minimum 1 year.

4. The party of the second part has also agreed to execute a Bond, Indemnity and Undertaking in relation to the SR/Tutor appointed etc. The party of the second part acknowledges, admits and undertakes that after the completion of the course of (Degree) MD/MS/Diploma, the party of the second part will join and continue to work with the party of the first part for a period of 1 year. The party of the second part will be paid salary.

5. The parties have now mutually decided to reduce the same in writing on the following terms and conditions:-

NOW IT IS AGREED BETWEEN.THE PARTIES HERETO AS FOLLOWS:

(i) The party of the second part agrees to work with the party of the first part as a Senior Resident/Tutor at the constituent medical colleges of MGMIHS at Navi Mumbai / Chhatrapati Sambhajinagar.
run and administered by the party of the first part at a pre defined monthly salary of MGMIHS norms.

(ii) The party of the second part agrees, undertakes and is bound by the agreement, bond and undertaking to work for a total period of 1 year from the date the party of second part assumes charge of the said post. The said period may be extended for a further period from time to time as may be agreed upon. The party of the second part and the sureties have has also executed the required bond, indemnity and undertaking.

(iii) The party of the first part shall pay to the party of the second part a pre defined monthly salary/stipend based on the MGMIHS norms.

(iv) The Party of the Second Part agrees and admits that the outreach activity of the dept. for specified duration will be compulsory. The place of posting will be purely at the discretion of the Dean/Management.

(v) The Party of the Second Part agrees and admits that all the original documents submitted to the institute at the time of admission and mark sheet, passing certificate and degree certificate of the course in which admitted (issued by University) will be in custody of respective Medical College,
Hospital & Research Centre, till completion of the bond period of 1 years.

(vi) The party of the second part will be entitled to leave as per the norms of MGMIHS.

(vii) The party of the second part will devote the whole office or working time and shall work faithfully, sincerely, diligently and efficiently and to the best of her ability and make her best efforts to use her knowledge and skill in providing the best medical services and medical care to the patients.

(viii) The party of the second part will diligently undertake and complete the administrative work related to the patients assigned to her/him. The party of second part will not divulge or disclose to anybody any medical case papers, examinations details, reports of any of the patients.

(ix) If the party of the second part resigns from service and terminates this agreement before the expiration of the said period of 1 year, she/he will be liable to pay to the party of the first part a sum of Rs 25,00,000/ - (Rupees Twenty-Five lacs only) as per the agreement, bond indemnity and undertaking.

(x) The party of the second part will not remain absent from the work without a prior intimation and without obtaining prior written permission of the Administrator of the hospital or in his absence of any other Director of the Hospital.

6. All disputes or difference pertaining to the subject matter of the this agreement or in respect of the employment of the party of the second part shall be referred to Arbitration.

7. This agreement is executed in duplicate and one copy each will remain with the parties.

IN WITNESS WHEREOF the parties have put their hands the day and year first hereinabove written.

Signed for and on behalf of
The party of the first part
---
in the presence of ----------
1)
2)

Signed by the withinnamed

The party of the second part
---
in the presence of ----------
1)
2)

BOND BY PARENT ON RS. 500 STAMP PAPER AND NOTARIZED

(Draft 2)

Bond by parents of a Student Admitted to a College to Secure the Performance of an Agreement

BY THIS BOND We, Mr/Mrs ----------residing at --------, and Mr /Mrs ---------- residing at --------- (hereinafter called "the sureties") are bound jointly and severally to the trustees/management of the _____College (hereinafter called "the trustees/management") for the payment to the trustees/management of the sum of Rs. 25,00,000/- (Rupees Twenty-Five Lacs).

WHEREAS by a deed of agreement dated the _____executed by the trustees/management and ---------- (student) (or guardian of student) the trustees/management have agreed to educate the said ---------- --------- (student) at the_____College and to make him certain payments therein stipulated on the terms and conditions therein specified.

AND WHEREAS for the purpose of securing and indemnifying the trustees/management, their assigns and successors against all loss and damage which they might suffer by reason of the said---------- (student) (or, the said ---------- (surety)) making default in the observance and performance of any covenant on his part to be performed and contained in the aforesaid agreement and in consideration of the said education and payment to be given and made by the trustees/management to the said ---------- ---- (student) it has also been agreed that the parents should execute the above written bond subject to the condition hereinafter contained.

NOW THE CONDITION of the above written bond is that if the said --------- ---------- (student) (and the said ---------- surety) shall duly and faithfully observe and perform all the stipulations and conditions on his (their) part to be observed and performed and contained in the aforesaid agreement dated_____then the above written bond or stipulation shall be void otherwise the same shall remain in full force.

Signed.

BOND BY GUARDIAN/SURETIES ON RS. 500 STAMP PAPER AND NOTARIZED

(Draft 3)

(This is to be given if parents are not available for (draft 2) bond)

KNOW ALL MEN that We Mr ---------- (student) residing at ---------- (or, ---------- guardian of Student) etc. (Surety No.1) and ---------- (Surety No.2) bind ourselves jointly and severally to the ----------Mahatma Gandhi Missions Institute of Health Sciences/management /Trustees for payment of the sum of Rs. 25,00,000/- (Rupees Twenty-Five Lacs).

WHEREAS the above named bounden ---------- (student) has under the letter/order_____dated _____ been admitted to the ---------- course run and administered by _____college.

WHEREAS by a deed of agreement dated_____executed between the MGMIHS/Trustee/Management and the said bounded ---------- (student) (or, his guardian ----------) the MGMIHS/Trustee/Management has admitted the student and agreed to educate the student. The Student in turn has agreed to work with the MGMIHS/Trustee/Management for a period of 1 year for which he will be paid a salary as per the terms and conditions therein specified.

AND WHEREAS for the purpose of securing and indemnifying the MGMIHS/MGM Trust/management against all losses and damages which the MGMIHS/MGM Trust/management may suffer by reason of the said ----------(student) making any default in the observance and performance of any covenant on his part to be performed and contained in the said agreement and in consideration of the expenses to be incurred on the said training and payments thereof to be made to the said ---------- (student), it has been agreed that the said sureties i.e Mr/Mrs ---------- and Mr /Mrs ----------) should execute the above given bond subject to the condition hereinafter contained.

NOW THE CONDITION of the above-written bond is that if the said ---------- (student)(or, the said ---------- his guardian) shall duly and faithfully observe all these stipulations and conditions on his part to be observed and performed and contained in the aforesaid agreement dated _____ then the above written bond or stipulation shall be void otherwise the same shall remain in full force.

Signed, etc.

SERVICE BOND TO BE GIVEN BY STUDENTS ON RS. 500 STAMP PAPER AND NOTARIZED

(Draft 4)

BOND

This Bond made on this day _____ between _____ (Name & Address of Student) hereinafter called "Student" which expression shall unless the context does not permit includes her / his executors etc. of one part and the Registrar of MGMIHS, hereinafter called "MGMIHS" of the other part.

Whereas the student has agreed to undergo Post Graduate Course of (Degree) MD/MS in department of_____at ---------- -------- Medical College, Hospital & Research Centre,----------.

NOW THEREFORE THIS BOND WITNESSED AS UNDER:

1. That the student shall entitled to stipendiary benefit from the College as may be decided by the College/MGMIHS and will not accept any employment or conduct any private practice while undergoing the course.
2. That the student admitted in this Institute will serve the MGMIHS for a minimum period of 1 year after passing post graduate qualification, alternatively she/he will pay an amount of Rs. 25,00,000/- (Rs. Twenty-Five Lacs Only) for PG Degree Courses to the management. However, the management may discontinue her / him considering her/his record, conduct, requirement of staff etc.
3. That during bond period, the student will be paid the stipend/ salary of Senior Resident/Tutor (for degree student) and the stipend/salary based on the MGMIHS norms.
4. That the outreach activity of the dept. for specified duration will be compulsory. The place of posting will be purely at the discretion of the Dean/Management.
5. That all the original documents submitted to the instituteat the time of admission and mark sheet, passing certificate of the course in which Admitted (issued by University) will be in custody of the respective Medical College, till completion of the bond period of one years

6. That if the student during the period undergoing the Post Graduate Course quits or leaves the course in the middle of entire duration of two / three years, she / he will make good the balance fees due to her / his for the entire course and in default will be required to pay Rs. 25,00,000/- (Rs. Twenty-Five Lacs) for bond period as per the agreement bond indemnity and undertaking for not serving the MGMIHS and no certification or documents will be returned till the amount due is paid.

In witness hereof the student and the college sets their hands herein on_____day of_____.

In presence of witnesses.

Signature &

Name of Candidate & Address

1)

2)

Date: _____

Place:

UNDERTAKING BY STUDENT ON RS. 500 STAMP PAPER AND NOTARIZED

(Draft 5)

UNDERTAKING

I, _____ Son / Daughter / Wife of Shri _____ Indian Inhabitant, residing at _____do solemnly affirm and state as under:

1. I say that I have appeared for the NEET (PG) 202--- examination conducted by the---------- to secure admission in the academic year 20--- - 20 ---- in Medical_____.
2. I say that solely on the basis of merit I have been admitted to the_____college in MD / MS_____Course in ---------- Quota in the academic year 20--- -20---.
3. I say that at the time of securing my admission I have paid a sum of Rs._____/- as fees for MD/MS/Diploma _____etc. Courses.
4. I say that I have made a bond with college to serve the MGMIHS for a specified period of 1 year after passing my PG course and I hereby undertake to submit undertaking / solvency/affidavit/Bond in lieu of bond fees within 15 days.
5. I further agree, admit and undertake to serve the MGMIHS for a period of 1 year after passing my course. I further agree and undertake to complete the said period of 1 year. I further say that if a fail to complete the said period of 1 year for whatsoever reason, then in that case I will be immediately be liable to pay to the MGMIHS/Trust/Management an amount of Rs 25,00,000/- and the said MGMIHS/Trust/Management will be entitled to invoke the Bond, Indemnity and undertaking and take steps in accordance with law.

This_____day of _____

Identified by me; _____

Signature &

Name of Candidate & Address

BY STUDENT ON RS. 500 STAMP PAPER AND NOTARIZED

SOLVENCY TO BE GIVEN BY PARENT OR GUARDIAN AS APPLICABLE

(Draft 6)

AFFIDAVIT OF 1ST SURETY

I, _____ S/O, D/O, Sh./Dr. _____ resident of _____ do hereby solemnly affirm and declare as under:

1) That I state on oath that I am a permanent resident of _____ do hereby solemnly affirm and declare as under:

2) That I state on oath that I stand surety for _____ "the obliger" whereas the MGMIHS/College has selected the obliger for post graduate course of (Degree) MD/MS/Diploma for a period of ----------years in the department of _____ at ----------Medical College,----------.

3) That I state on oath that I have no blood relation with Dr. _____ S/O, D/O_____mentioned in para No.2 (To be filled if other than parent).

4) That I state on oath that I am legal and right full owner of the property amounting to Rs. _____ in my possession. I say that the said property is not mortgaged or encumbered in any manner whatsoever. The details of the property is as under:
(Description)

5) That I state on oath that I will not sell, pledge, transfer, mortgage, charge or create any kind of charge whatsoever on the said property till the completion of the bonded period.

I, further declare that contents of my above affidavit are true and correct to the best of my knowledge and belief and nothing has been concealed therein. If the contents are found to be untrue I shall be laible for further necessary action.

Verified at _____

Deponent

Dated : _____

VERIFICATION

I, -.....further declared that contents of my above affidavit are true and correct to the best of my knowledge and belief and nothing has been concealed therein.

Verified at _____

Deponent

Dated : _____

AFFIDAVIT OF CANDIDATE ON RS. 500 STAMP PAPER AND NOTARIZED

(Draft 7)

I, _____ S/O, D/O _____ resident of_____do hereby solemnly affirm and declare as under:

1) That I have been provisionally selected for admission to Post-graduation course in the specialty of_____under ------- Quota / _----------quota (as the case may be) for the AY 20-___- 20_____at the _____Medical College, _____.

2) That the terms and conditions of admission notice are acceptable. I have not been debarred for doing any Postgraduate course previously.

3) That I am a citizen of India.

4) That I have not joined / doing any PG course at any other medical institute / college in India / abroad.

5) That I have not left any Postgraduate Course during the last three years.

6) That I have not joined any government/semi-government / private service.

7) That I will appear in Postgraduate Examination after completing three years study period in the same course as per NMC/MGMIHS norms.

8) That after getting admission in ---------- Medical College, ---------- if discontinue / leave the training course, then I will be bound to deposit the required fee of the entire course and the bond amount of Rs 25,00,000/- (Rupees Twenty-Five lacs).

9) That if I discontinue the training course after getting the admission or participating in a strike or being made to leave the training course on account of indiscipline or misconduct on his / her part or failing or refusing to serve the college for a minimum continuous period of 1 year after qualifying for full registration on completion of the course or for other reasons, then I shall be liable to deposit the entire bond money of Rs.25,00,000/- (Rupees Twenty-Five Lacs only) with the MGMIHS/MGM Trust/Management.

10) I will assure to pay the tuition fees and other fees as prescribed by MGMIHS every year for 3 years in the stipulated period the beginning of the year, any delay penalty / bank interested is applicable

11) All original & attested certificates submitted by me & my parent are true & authentic. If any documents found to be false, I shall be liable for appropriate legal action also for cancellation of admission or withdrawal of Degree even if the degree is already conferred. Also, I am liable to pay tuition fee of entire course with bond amount

Place: _____

Dated: _____

Deponent

I, further declare that contents of my above affidavit are true and correct to the best of my knowledge and belief and nothing has been concealed therein. If the contents are found to be untrue I shall be laible for further necessary action.

Deponent